



File No: EXP202206912

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 5, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against A.A.A. (hereinafter the claimed party). After notifying the initiation agreement and analyzing the allegations presented, on September 6, 2023, the proposal for resolution was issued, which is transcribed below:

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File No: EXP202206912

PROPOSAL FOR RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: On June 16, 2022, a written complaint was submitted to this Agency by B.B.B. (hereinafter, the complaining party), in which a claim is made against A.A.A. with NIF ***NIF.1 (hereinafter, the claimed party) for the installation of a video surveillance system in two properties owned by them, located at ***ADDRESS.1; there are indications of a possible violation of the provisions of personal data protection regulations.

The reasons for the claim are as follows:

"[...]"

After arriving home from work, I noticed a camera pointed from the window of that gentleman's house towards the access door to my home. Without any type of signage, so, lacking this, I do not know exactly how long it has been installed (...).

After the agents' visit (I only managed to get him to put a warning sticker about cameras), but the camera continues to record the entrance (...).

Although I speak only on my behalf and that of my family unit, due to the position of the camera, it records the entrance to two more homes, and it takes pictures from the same angle as the camera installation.

Finally, I would like to emphasize a second and main residence of this person, belonging to the same municipality, located at ***ADDRESS.2, where they currently have problems with the neighbors for this same reason (...). In this case, the camera is directly focused on a local road used by about 10 homes (among them is the access road to a property of mine) (...).

Along with the complaint, the following is provided:

- Photographic report of the location of the video surveillance cameras dated June 8, 2022.
- Photograph dated June 13, 2022, taken from the same angle as the device located at ***ADDRESS.1.
- Plans extracted from Google showing the location of the mentioned properties.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on June 20, 2022, this complaint was forwarded to the claimed party, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations. The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was delivered on July 7, 2022, as evidenced by the acknowledgment of receipt in the file.

On July 26, 2022, a response was received in this Agency indicating the following:

"[...]"

The video surveillance system is an apparatus that I purchased and installed myself in the homes where I reside, so there is no security company behind the installation of the same. (...)

In the property at ***ADDRESS.1, there are four cameras placed inside the home and one fictitious

camera pointed towards the outside. I attach photographs of the field of vision of these cameras, as well as a signed responsible declaration by me stating that the camera directed outside is fictitious, as I do not have the purchase invoice.

Regarding the property located at ***ADDRESS.2, I also have four cameras of which I attach images. Like the others, these cameras only record areas of my property. As I have already stated with C/ Jorge Juan, 6

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previously, none of the cameras capture public space, which is why no sign has been placed.

I reiterate what was previously stated, namely that there is no contract with a security company. These are cameras that I installed myself.

[...]

There is only a fictitious camera at ***ADDRESS.1 25 that is directed at the entrance of the residence. Since I do not have the purchase invoice, I attach the responsible declaration signed by me.

On 08/22/2022, this Agency sent the respondent a request for additional documentation, which was marked "Returned to sender due to excess (not picked up at office)" on 09/12/2022; reiterated on 08/14/2022 and delivered on 09/23/2022.

On 09/30/2022, a written response was received from the respondent stating the following:

[...]

Through this document, I am providing the photos of the sign that I have placed in a visible location, as instructed. The sign is placed in a visible location right at the main entrance of the property (...)"

Attached to the document is a photograph dated 09/20/2022 of the location of the information sign for the video surveillance area.

THIRD: On 09/16/2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On 10/25/2022, a document was received in this Agency from the complainant stating the following:

[...]

The person reported, far from removing those cameras, has installed two more, a second one at the main entrance of their home facing the local road at ***ADDRESS.2 and another placed above a decorative clock camouflaged that also records part of a highly frequented area by people, including my family.

Also, in the first complaint, I mentioned a camera installed at the lower part of my residence,

***ADDRESS.1; this second camera, also installed by A.A.A., is still operational to this day, (...)"

A photographic report of the location of the cameras dated 09/22/2022 is attached.

FIFTH: On 01/05/2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5.a) and b) of the GDPR.

This agreement was notified in accordance with the rules established in the LPACAP via postal notification, which was delivered to the respondent on 01/27/2023.

SIXTH: On 02/06/2023, the respondent submitted a written document, in due time and form, to this Agency stating the following:

[...]

Regarding the two cameras that the complainant alleges have been newly installed at ***ADDRESS.2, it is evident that one of those cameras was already mentioned in the previous complaint, and I provided the relevant explanations and sent what was requested by the Spanish Agency for Data Protection.

Since it captures the minimum necessary allowed by personal data protection regulations, as you indicated to me, I had to mark it with an information sign, which I did not fill out correctly due to ignorance. However, after contacting the agency to request information on how to fill out the sign, I

have corrected it, of which I attach a photograph. (...)

Regarding the camera located above a clock, it is COMPLETELY INOPERATIVE. That clock was given to me and came with that camera on top, so it was not even installed by me. Nevertheless, I reiterate, it is not recording any images because it is not operational (...).

2. Regarding the camera located in the window of ***ADDRESS.1, in my first document, I referred to it as fictitious and even signed an affidavit declaring this fact. However, since it is not my intention to intimidate anyone, I have removed it, as can be verified in the photos I attach below.

[...]"

SEVENTH: On 07/11/2023, the instructing body of the procedure agreed to open a period for evidence, incorporating the complaint filed by the complainant and its documentation, as well as the allegations to this initiation agreement presented by the respondent and the documentation accompanying them.

Additionally, the instructing body requested the respondent to provide a document that certifies the non-operability of the camera in question, or, alternatively, to provide a signed responsible declaration stating, under their responsibility, that the camera located above the clock is not operational/has been removed.

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EIGHTH: On 13/07/2023, a responsible declaration signed by the respondent was received in this Agency, in which it is stated that the surveillance camera installed at ***ADDRESS.2, specifically the one located above the clock, is fictitious.

NINTH: Attached as an annex is a list of documents in the proceedings.

From the actions taken in the present proceedings and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: Existence of several surveillance systems in the properties located at:

- ***ADDRESS.1. It has four cameras that record the interior of the dwelling, as seen in the images from the monitor dated 20/07/2022; and one camera that focuses outward. The latter is fictitious, according to the responsible declaration signed on 11/07/2022.

- ***ADDRESS.2. It has three cameras that record the interior of the property and one camera that captures the minimum necessary of the public road allowed by personal data protection regulations. These points are evidenced by the images from the monitor dated 20/07/2022. Additionally, there is a camera located above an exterior clock, but it is fictitious, according to the responsible declaration signed on 01/07/2022.

SECOND: Identified as responsible for the surveillance systems is A.A.A. with NIF ***NIF.1.

THIRD: On 29/09/2022, the information sign for the monitored area placed at ***ADDRESS.2 contains the following data:

- "Responsible": A.A.A.

- "You can exercise your data protection rights before": empty.

- "More information about the processing of your personal data": empty.

FOURTH: On 05/02/2023, the information badge located at ***ADDRESS.2 contains the following data:

- "Responsible": A.A.A.

- "You can exercise your rights before": ***ADDRESS.1.

- "More information about the processing of your data": ***ADDRESS.1

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LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (image of natural persons) carried out through the reported surveillance system complies with the provisions of the GDPR.

III

Claims made

In relation to the claims made regarding the initiation agreement of this sanctioning procedure, a response is provided.

On one hand, the respondent claims that they have completed the information sign for surveillance placed at ***ADDRESS.2, in accordance with the provisions of personal data protection regulations. They provide images of the information badge, dated 05/02/2023, which prove the assertions made by the respondent.

In this regard, this Agency wishes to point out that, at the time of the initiation of this sanctioning procedure, the respondent did not fulfill their duty to adequately inform the affected parties.

On the other hand, the respondent claims that the camera located above the clock is inoperative and has not captured any images. In this sense, during the

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In the testing phase, the respondent provided a signed responsible declaration in which they highlight the fictitious nature of the device placed at ***ADDRESS.2. Furthermore, the respondent claims to have removed the camera located at the window of the property situated at ***ADDRESS.1. They provide an image dated 05/02/2023, which proves this fact.

It should be noted that "The interested parties will be responsible for the veracity of the documents they present," in accordance with Article 28.7 of the LPACAP.

Therefore, based on the evidence available at this moment in the proposal for resolution of the sanctioning procedure, it is considered that the video surveillance systems installed in the properties located at ***ADDRESS.1 do not carry out excessive capture constituting a violation of Article 5.1.c) of the GDPR.

However, the adoption of measures by the respondent to comply with current regulations does not imply the rectification of the infringing conduct of Article 13 of the GDPR.

V

Transparency of the processing of personal data

Article 5 of the GDPR “Principles relating to processing” states that:

“1. Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject (‘lawfulness, fairness, and transparency’).”

This principle is further developed in Article 12 of the GDPR and, depending on whether the personal data is obtained from the data subject themselves or not, the information that must be provided is enumerated in Articles 13 or 14 of the GDPR.

Regarding processing for video surveillance purposes, Article 22.4 of the LOPDGDD provides that:

“The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the informative device.”

VI

Typification and qualification of the infringement of Article 13 of the GDPR

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If confirmed, the aforementioned infringement of Article 13 of the GDPR could constitute the commission of the infringements typified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

(...)

b) the rights of data subjects under Articles 12 to 22; (...)”

For the purposes of the statute of limitations for infringements, the infringements indicated in the previous paragraph are considered very serious in accordance with Article 72.1.h) of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this Organic Law.”

VII

Corrective powers for the infringement of Article 13 of the GDPR

The corrective powers available to the Spanish Data Protection Agency, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the power to impose an administrative fine in accordance with Article 83 of the GDPR - Article 58.2 i) - or the power to order the controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified timeframe - Article 58.2 d).

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

In the present case, considering the facts presented, it is deemed that the sanction to be imposed is an administrative fine. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damages they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damages suffered by the affected parties;
- d) the degree of responsibility of the data controller or processor, considering the technical or organizational measures they have applied under Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate any potential adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, particularly whether the data controller or processor reported the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or losses avoided, directly or indirectly, through the infringement.”

For its part, regarding letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any affected party.”

The balance of the circumstances considered allows for the proposal of a fine of €300.00 (three hundred euros) for the infringement of Article 13 of the GDPR.

In view of the above, the following

PROPOSAL FOR RESOLUTION

is issued by the Director of the Spanish Agency for Data Protection to sanction A.A.A., with NIF

***NIF.1, for an infringement of Article 13 of the GDPR, classified under Article 83.5.b) of the GDPR,

with a fine of €300 (three hundred euros).

Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that they may, at any time prior to the resolution of this procedure, make a voluntary payment of the proposed sanction, which will entail a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €240.00 (two hundred forty euros) and its payment will imply the termination of the procedure. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that they choose to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, it must be made effective by depositing it into the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the sanction. Furthermore, they must send the proof of payment to the General Subdirectorato of Inspection to proceed to close the file.

In virtue of this, they are notified of the above, and the procedure is made known so that within TEN DAYS they may allege whatever they consider in their defense and present the documents and information they deem pertinent, in accordance with Article 89.2 of the LPACAP.

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R.R.R.

INSPECTOR/INSTRUCTOR

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ANNEX

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16/06/2022 Claim by B.B.B.

20/06/2022 Transfer of claim to A.A.A.

26/07/2022 Written submission from A.A.A.

22/08/2022 Request for information from A.A.A.

14/09/2022 Request for information 2 from A.A.A.

16/09/2022 Communication to B.B.B.

30/09/2022 Response to request from A.A.A.

25/10/2022 Written submission from B.B.B.

09/01/2023 A. opening to A.A.A.

28/01/2023 Info. Claimant to B.B.B.

06/02/2023 Allegations from A.A.A.

11/07/2023 Notification regarding evidence to C.C.C.

13/07/2023 Response to request from A.A.A.

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SECOND: On September 21, 2023, the respondent has proceeded to pay the fine in the amount of 240 euros, making use of the reduction provided for in the resolution proposal transcribed above.

THIRD: The payment made entails the waiver of any action or appeal in the administrative route against the fine, in relation to the facts referred to in the resolution proposal.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGGDD), the Director of the Spanish Agency for Data

Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party at any time prior to the resolution will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202206912, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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